

25TRCV00943 25TRCV00943

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-09-02

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Case Number: 25TRCV00943 Hearing Date: September 2, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

MELVIN GREEN

;

Plaintiff,

vs.

DELTA

AIR LINES, INC.

, et al.;

Defendants.

Case

No.:

25TRCV00943

Hearing

Date:

September
2, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

defendant

DELTA AIR LINES, INC.'S MOTION TO COMPEL PLAINTIFF MELVIN GREEN'S COMPLIANCE
WITH THE COURT'S MARCH 25, 2026 ORDER

(2)

defendant

DELTA AIR LINES, INC.'S request for monetary sanctions

MOVING PARTY: Defendant, Delta Air Lines, Inc.

RESPONDING

PARTY: No opposition.

(1)

Defendant

Delta Air Lines, Inc.'s Motion to Compel Plaintiff Melvin Green's Compliance
with the Court's March 25, 2026 Order is DENIED pursuant
to Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615.

(2)

Defendant

Delta Air Lines, Inc.'s Request for Monetary Sanctions is GRANTED in the
reduced amount of \$600.00 pursuant to Code of Civil Procedure section 2023.030,
subdivision (a).

The Court considers the moving papers filed on July 7, 2026, the
notice of non-opposition filed on August 26, 2026, and a declaration filed on

August 28, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On March 21, 2025, plaintiff Melvin Green ("Plaintiff") filed the Complaint against defendants Delta Air Lines, Inc. ("Delta"), Brett Hancock, DOE 1 – Wade [Last Name Unknown], Doe 2 – Josh [Last Name Unknown], DOE 3 – Brandy [Last Name Unknown], and DOES 4 through 10. The Complaint includes the following causes of action: (1) Age Discrimination (FEHA) – Against Delta Only; (2) Disability Discrimination (FEHA) – Against Delta Only; (3) Failure to Provide Reasonable Accommodation (FEHA) – Against Delta Only; (4) Failure to Engage in Interactive Process (FEHA) – Against Delta Only; (5) Hostile Work Environment (FEHA) – Against All Defendants; (6) Retaliation (FEHA) – Against Delta Only; (7) Failure to Prevent Discrimination and Retaliation (FEHA) – Against Delta Only; (8) Aiding and Abetting Discrimination (FEHA) – Against Individual Defendants; (9) Wrongful Termination in Violation of Public Policy (FEHA) – Against All Defendants; (10) Failure to Provide Rest Periods (Labor Code § 226.7) – Against All Defendants; (11) Failure to Provide Meal Periods (Labor Code §§ 226.7, 512) – Against All Defendants; (12) Failure to Pay Overtime Wages (Labor Code § 1194) – Against All Defendants; (13) Waiting Time Penalties (Labor Code § 203) – Against All Defendants; (14) Unlawful Business Practices (Bus. & Prof. Code § 17200) – Against All Defendants; and (15) Accrued Premiums as Wages – Against All Defendants.

On October 20, 2025, Delta served Plaintiff with the following discovery requests: (1) Form Interrogatories – General (Set One); (2) Form Interrogatories – Employment Law (Set One); (3) Special Interrogatories (Set One); (4) and Requests for Production of Documents (Set One). (Declaration of Celia L. Guzman ("Guzman Decl."), ¶ 2, Exhs. A-B.)

On December 10, 2025, Delta's counsel emailed Plaintiff's counsel to inquire about the missing responses. (Guzman Decl., ¶ 3.) However, Plaintiff's counsel did not respond. (Guzman Decl., ¶ 3.)

On December 30, 2025, Delta's counsel reached out again to Plaintiff's counsel regarding the outstanding discovery responses and warned that they would file a motion to compel if Plaintiff did not provide any responses. (Guzman Decl., ¶ 4, Exh. C.) Despite this, Plaintiff's counsel did not respond or provide any discovery responses. (Guzman Decl., ¶ 4.)

On February 6, 2026, Delta filed several motions to compel, including the Motion to Compel Plaintiff to Provide Discovery Responses and to Produce Responsive Documents, accompanied by a request for sanctions. (Guzman Decl., ¶ 5.)

On March 25, 2026, the Court granted the motion. (Guzman Decl., ¶ 6, Exh. D.) The Court ordered the following: (1) Plaintiff is to provide verified, code-compliant responses and documents, without objections, by April 22, 2026; (2) Delta's request for monetary sanctions was granted in the reduced amount of \$600.00; (3) Plaintiff is to pay of \$600.00 to Delta's counsel by April 22, 2026; and (4) Delta is responsible for providing notice of the Court's ruling. (Guzman Decl., ¶ 6, Exh. D.) Delta gave notice the same day. (Guzman Decl., ¶ 6, Exh. D.)

However, on April 22, 2026, Plaintiff failed to produce any responses or documents, nor did Plaintiff comply with the Court-ordered payment of \$600.00 in sanctions. (Guzman Decl., ¶ 7.)

On April 28, 2026, Delta's counsel sent a meet-and-confer letter to Plaintiff to address their noncompliance with the court order issued on March 25, 2026. (Guzman Decl., ¶ 8, Exh. E.) On April 29, 2026, Plaintiff responded to Delta's discovery requests; however, Plaintiff did not produce any documents or pay the \$600.00 in sanctions. (Guzman Decl., ¶ 9, Exh. F.)

On May 5, 2026, Delta's counsel emailed Plaintiff's counsel requesting payment of the court-ordered sanctions. (Guzman Decl., ¶ 10, Exh. G.) Subsequently, on May 18, 2026, Delta's

counsel sent an additional meet-and-confer letter, urging Plaintiff to promptly pay the sanctions, produce the requested documents, and supplement the allegedly deficient responses by May 25, 2026.

(Guzman Decl., ¶ 11, Exh. H.)

On May 19, 2026, Plaintiff's counsel promised to supplement the responses but requested an extension until June 2, 2026. (Guzman Decl., ¶ 12, Exh. I.) Delta's counsel agreed to this extension on the condition that Plaintiff would pay the sanctions by the same date. (Guzman Decl., ¶ 12, Exh. I.) However, by June 2, 2026, Plaintiff did not supplement his responses or pay the sanctions.

(Guzman Decl., ¶ 13.)

On June 4, 2026, Delta's counsel followed up but Plaintiff's counsel did not reply. (Guzman Decl., ¶ 14, Exh. J.)

On June 17, 2026, Delta's counsel made a final attempt to reach out to Plaintiff's counsel. (Guzman Decl., ¶ 15, Exh. K.) During the call, Plaintiff's counsel indicated that it was difficult for him to contact Plaintiff, but he assured that he would make every effort to provide the supplemental responses, relevant documents, and the sanctions payment by the end of that day. (Guzman Decl., ¶ 15, Exh. K.) However, by June 17, 2026, Plaintiff did not supplement his responses, provide documents, or pay the sanctions. (Guzman Decl., ¶ 16.)

LEGAL STANDARD

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civil Proc., § 2023.030, subd. (a).)

DISCUSSION

Delta requests that the Court: (1) enforce the order issued on March 25, 2026, by compelling Plaintiff to produce any outstanding documents and to remit the overdue payment of \$600.00, in addition to accrued interest; and (2) impose an additional monetary sanction of \$1,500.00 against Plaintiff and his counsel. (Motion, p. 7:10-15.)

Enforcement

The Court first notes that Plaintiff remains under an order to produce the outstanding documents and to remit monetary sanctions amounting to \$600.00. Although Plaintiff appears to be in continued violation of this order, there is no need to issue an order for Plaintiff to comply with a court directive that is currently in effect. Moreover, the proper mechanism for enforcing an order for monetary sanctions is through a writ of execution.

“[M]onetary sanction orders are enforceable through the execution of judgment laws.” (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615 (Newland).)

Monetary sanction orders “have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction.”

(Ibid.) Here, Delta seeks

to enforce the Court’s March 25, 2026 Minute Order, which imposes \$600.00 in monetary sanctions against Plaintiff. As articulated in Newland, this imposition of sanctions is a monetary judgment entered against Plaintiff. (Newland, supra, 40 Cal.App.4th at p. 615.) The proper enforcement method of such a money judgment is to proceed pursuant to the execution of judgment laws articulated within Code of Civil Procedure sections 680.010 through 724.260. (Code Civ. Proc., §§ 680.010, et seq.)

Accordingly, the Court DENIES Delta’s motion.

Request for Sanctions

Delta requests \$1,500.00 in sanctions to cover the attorney’s fees and costs incurred in bringing this motion.

(Motion, pp. 6:7-8:8.) This request is made under the following legal provisions: Code of Civil Procedure sections 2023.010, subdivision (g), and 2023.030, subdivision (a). (Motion, p. 6:9-13.)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civil Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... (g) Disobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010, subd. (g).)

Given that Plaintiff continues to be in violation of the Court’s order dated March 25, 2026, the Court deems the imposition of sanctions to be appropriate.

Plaintiff’s counsel has attempted to justify the failure to comply with the order to provide pertinent documents: “At my direction, this office reviewed each of the fifty-nine items placed at issue and identified, for each, the party or entity in whose possession, custody, or control the responsive information or documents reside. ... The analysis reflects that forty-two of the fifty-nine items can be answered only from records held by Delta, by Sedgwick, by Delta’s workers’ compensation carrier, or by Plaintiff’s subsequent employer; that ten further items depend in part on those same records; and that seven items turn exclusively on information within Plaintiff’s independent reach.” (Declaration of Reza Sina (“Sina Decl.”), ¶ 3.)

While the Court acknowledges this explanation, Plaintiff’s counsel does not clarify why no responsive documents have been produced, including those exclusively in Plaintiff’s possession. Counsel asserts, “The information that [Plaintiff] does have in his possession has been provided and nothing withheld.” (Sina Decl., ¶ 7.) Therefore, Plaintiff should have, at minimum, produced some of the documents.

Consequently, Plaintiff has indeed disobeyed the Court’s order regarding discovery, and additional sanctions against Plaintiff remain appropriate.

However, Delta has not provided definitive information regarding the costs or hours allocated to drafting this motion. Instead, Delta’s counsel, Celia L. Guzman, states: “Delta has already incurred fees in

excess of \$10,000.00 in efforts to obtain basic discovery responses. I have spent at least 18 hours at an hourly rate of \$485.00 preparing this Motion and the accompanying motions to compel further discovery responses and requests for sanctions (the 'Motions'). Dawn Irizarry, lead counsel, for Delta, has spent 3 hours at an hourly rate of \$550.00 reviewing and revising the Motions. I estimate Delta will incur an additional \$3,880.00 (8 hours of fees) reviewing Plaintiff's oppositions to the Motions and preparing the Reply papers. Moreover, I estimate Delta will incur an additional \$1,455.00 to prepare for and attend the hearing on the Motions. Thus, the total fees incurred by Delta in preparing and defending this Motion will exceed \$15,335.00." (Guzman Decl., ¶ 17.)

Thus, it is evident that Guzman is detailing the hours and costs associated with filing the motions to compel further discovery rather than specifically addressing this motion. The Court will not grant monetary sanctions related to those other motions until they are before this Court. However, since sanctions are warranted in this instance and Guzman has provided their hourly rate, the Court will grant sanctions against Plaintiff in the amount of \$600.00 for the time spent on this motion.

ORDERS

1) Defendant

Delta Air Lines, Inc.'s Motion to Compel Plaintiff Melvin Green's Compliance with the Court's March 25, 2026 Order is DENIED.

2) Defendant

Delta Air Lines, Inc.'s Request for Monetary Sanctions is GRANTED in the reduced amount of \$600.00.

3) Plaintiff

Melvin Green shall pay Delta's counsel \$600.00 by September 30, 2026.

4) Delta

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 2, 2026

Tamara
Hall

Judge
of the Superior Court